

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 22-21

MSRF, Inc. v. Yang Ming Marine Transport Corporation

**UNOPPOSED MOTION FOR LEAVE TO UPDATE RESPONDENT'S
MOTION FOR RECONSIDERATION**

Respondent Yang Ming Marine Transport Corporation (“Respondent” or “Yang Ming”) hereby moves for leave to update its December 13, 2022 Motion for Reconsideration (Motion) to reflect subsequent developments relevant to that Motion. As required by the Commission’s Rules, 46 CFR 502.71(a), Respondent has conferred with Counsel for Complainant, who advises that Complainant does not oppose the instant motion but intends to file an explanatory response.

In support of this motion, Respondent states as follows:

By Order dated December 8, 2022, the Presiding Officer extended the date for Complainant to respond to Respondent’s discovery requests until December 21, 2022. That date, like the previous extension, has come and gone without full compliance by Complainant. In particular:

1. Complainant did not produce a single document in response to Respondent’s First Request for Production of Documents (although saying it would do so at some unspecified, later date).¹

¹ We understand from Counsel for Complainant that this is due to prolonged illness of a key employee of Complainant. Our point is not to cast aspersions on the efforts being made by Complainant or its Counsel, but rather to reflect the effect of the delay on Respondent’s ability to meet the schedule as presently in place.

2. Further, Complainant has thus far refused to produce (even in the future) documents that Respondents believe Complainant is required to produce under the FMC discovery rules.
3. Finally, although Complainant did nominally respond to Respondent's First sets of Interrogatories and Requests for Admission in the evening of December 21, 2022, its responses are, in Respondent's view, substantially deficient when measured against the requirements of the FMC discovery rules.

We and Counsel for Complainant plan to work hard to resolve the concerns about discovery responses, as in any event is required by Rule 150(a)(2)(i), 46 CFR 520.150(a)(2)(i), Respondent reserves the right to file a motion to compel, if necessary for any unresolved issues, but hopes to avoid that measure or at least substantially reduce the scope of the discovery dispute before any motions are filed. Again, the point is not to raise prematurely Respondent's concerns about Complainant's discovery responses, but rather to make clear that getting to a satisfactory resolution of discovery issues will take time not accounted for under the existing schedule.

As explained in the Motion, the existing schedule already makes it impossible for Respondent to propound additional discovery requests by the February 10, 2022 due date, or to take depositions within the overall deadline for discovery. This is now doubly impossible, given that Respondent will not receive complete responses to its first discovery requests until likely after that date. This unfortunate circumstance, regardless of cause, further mandates that the Presiding Officer reconsider her December 8, 2022 Order and adopt the schedule originally proposed by Complainant with the conditional consent of Respondent.

Respondent submits that, for the foregoing reasons, the Presiding Officer should grant the requested leave to update the Motion.

DATED: December 23, 2022

Respectfully submitted,

s/ Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I certify that on the 23rd day of December, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020 as follows:

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